

Santi Charan Banerjee vs D/O India Post on 19 February, 2026

CENTRAL ADMI
KOLKATA BE
O.A. No.
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Date of O

Coram: Hon'ble Mr. Anindo Majumdar, Administrative Member
Hon'ble Mr. Diwakar Singh, Judicial Member

For The Applicant(s):

Mr.
Mr.

For The Respondent(s): Mr. A. Mondal; Counsel

Digitally signed by UTKARSH JHA

UTKARSH

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Per: Mr. Diwakar Singh, Member (J)

Heard Ld. Counsel on both the sides.

2. The applicant has filed this Original Application seeking the following relief(s):

"a) An order directing the respondents to give the promotion to the applicant in the post of Multi Tasking Staff (Group. D Post) with effect from 2003 because vacancy was assessed in the year 2003 so that the applicant is entitled to promotion in the year 2003 and thereafter release the all retirement benefits and pension according to Old Pension scheme basis;

b) An order directing the respondents to produce all the D.P.C. file from 1995 to 2003 before the Hon'ble Tribunal which related to the instant case,

c) Any other order or orders as to this Hon'ble Tribunal may deem fit and proper."

FACTS OF THE CASE

3. The applicant in the instant O.A. was initially engaged as an Extra Departmental Mail Carrier (E.D.M.C.), now known as Gramin Dak Sevak (GDS), under the Department of Posts with effect from 20.12.1978. Subsequently, he was provisionally appointed as Extra Departmental Branch Postmaster (E.D.B.P.M.), vide order dated 09.08.1995 (Annexure A/1), and, assumed charge of the said post with effect from 01.09.1995.

3.1. A seniority list of Extra Departmental officials corrected up to 31.12.1995 was circulated on 29.01.1997 (Annexure A/2), wherein the applicant was initially placed at Serial No. 429. However, the UTKARSH DN: C=IN, O=Personal, T=5165, OID.2.5.4.65=133594473126687154pySd3T548hJkYS, Phone=d9b37d12604e22491616e4be43745443ceb9dc6b6c897b9b058b2c80169b65de, Postal Code=812001, S=Bihar, SERIALNUMBER=87702d895f8f8d9e54f67b1d9ffc368bb1bac7172b7b88641da0dc7e71dd7do a, CN=UTKARSH JHA JHA Reason: I am the author of this document Location:

Date: 2026.02.23 16:29:48+05'30' Foxit PDF Reader Version: 2024.3.0 respondents issued a corrigendum dated 27.11.1997 (Annexure R/2), whereby the said error was rectified and the applicant was upgraded to Serial No. 106-A, treating his date of entry into Extra Departmental service as 20.12.1978.

3.2. Subsequently, a vacancy notification dated 04.04.2005 (Annexure A/3) was issued for filling up vacancies in the Postman and Group-D cadre. Based on the recommendation of the Departmental Promotion Committee held on 20.04.2005 (Annexure A/3), and being next in order of seniority after the seniormost eligible candidate had left service, the applicant was recommended for appointment to the departmental Group-D post (now Multi Tasking Staff). The applicant gave his willingness on 23.04.2005 and was appointed and joined the said post on 30.04.2005. 3.3. Thereafter, the applicant continued in departmental service and retired on superannuation on 31.10.2015. His retirement benefits under the New Pension Scheme (National Pension System), which had come into force with effect from 01.01.2004, were processed and disbursed accordingly.

3.4. Being aggrieved, the applicant has filed the present O.A. seeking, inter alia, a direction to grant him promotion to Group-D post with effect from the year 2003, and to extend him the benefit of the Old Pension Scheme on that basis.

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CONTENTIONS OF THE APPLICANT

4. The applicant has contended that although his date of entry into Extra Departmental service was 20.12.1978, his seniority was not properly considered initially, which adversely affected his timely promotion to the departmental Group-D post. According to him, vacancies had arisen in the Group-D cadre in the year 2003, and had the respondents conducted the Departmental Promotion Committee at the appropriate time, he would have been promoted in the year 2003 itself, thereby becoming entitled to the Old Pension Scheme.

4.1. The applicant has further submitted that the delay in conducting the Departmental Promotion Committee was attributable solely to the respondents, and, therefore, he should not be made to suffer on account of such administrative delay. He has relied upon various judicial pronouncements including Inspector Rajendra Singh & Ors. vs. Union of India, A.R.D. Nayagam vs. Local Fund Audit, Dr. Ravindra Narayan Mishra vs. Sri Guru Tegh Bahadur Khalsa College, and the judgment of the Hon'ble Madras High Court in Union of India vs. K. Punniyakoti & Ors., to contend that where delay in appointment or promotion is attributable to the administration, employees should not be deprived of the pensionary benefits under the Old Pension Scheme.

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Date: 2026.02.23 16:29:48+05'30' Foxit PDF Reader Version: 2024.3.0 4.2. On the basis of the above, the applicant has prayed for notional promotion with effect from 2003 and consequential grant of pensionary benefits under the Old Pension Scheme.

CONTENTIONS OF THE RESPONDENTS

5. Per contra, the respondents have opposed the instant O.A. and submitted that the applicant was initially engaged as a Gramin Dak Sevak, which is not a civil post governed by CCS (Pension) Rules, and he entered departmental civil service only on 30.04.2005, when he joined the Group-D post. 5.1. It is further submitted that although there was one vacancy in the Postman cadre in the recruitment year 2003, there was no vacancy in the Group-D cadre in that recruitment year. The vacancy against which the applicant was appointed arose in the recruitment year 2004, and the notification for filling the same was issued on 04.04.2005, followed by the Departmental Promotion Committee and appointment of the applicant on 30.04.2005. 5.2. The respondents have further

stated that the seniority position of the applicant was duly corrected in 1997 itself and the applicant was placed at Serial No. 106-A. His promotion was granted strictly in accordance with seniority and availability of vacancy. Ld. Counsel for the respondents has also submitted that the applicant voluntarily accepted the New Pension Scheme, applied for and obtained a Permanent Retirement Account Number (PRAN), and withdrew pension corpus under the said scheme, thereby estopping himself from claiming the Old Pension Scheme. UTKARSH DN: C=IN, O=Personal, T=5165, O I D . 2 . 5 . 4 . 6 5 = 1 3 3 5 9 4 4 7 3 1 2 6 6 8 7 1 5 4 p y S d 3 T 5 4 8 h J k Y S , P h o n e = d9b37d12604e22491616e4be43745443ceb9dc6b6c897b9b058b2c80169b 65de, P o s t a l C o d e = 8 1 2 0 0 1 , S = B i h a r , S E R I A L N U M B E R = 87702d895f8f8d9e54f67b1d9ffc368bb1bac7172b7b88641da0dc7e71dd7do a, CN=UTKARSH JHA JHA Reason: I am the author of this document Location:

Date: 2026.02.23 16:29:48+05'30' Foxit PDF Reader Version: 2024.3.0 5.3. Ld. Counsel for the respondents has also contended that the present claim is barred by limitation, acquiescence and estoppel, and that the applicant has approached this Tribunal after an inordinate delay of several years without any justification.

ANALYSIS

6. We have carefully considered the pleadings and submissions of both parties and examined the records placed before us. 6.1. It is an undisputed fact that the applicant was engaged as a Gramin Dak Sevak from 20.12.1978 and entered departmental civil service only on 30.04.2005, upon his appointment to the Group-D post. The post of Gramin Dak Sevak is distinct from departmental civil service and is governed by separate rules. Pensionary benefits under the CCS (Pension) Rules become applicable only upon entry into departmental civil service.

6.2. The principal contention of the applicant is that vacancies had arisen in the Group-D cadre in the year 2003 and that he ought to have been promoted against such vacancies. However, from the vacancy notification dated 04.04.2005, which has been annexed by the applicant himself at Annexure A/3 to the O.A., it is evident that there was no vacancy in the Group-D cadre in the recruitment year 2003. The said notification dated 04.04.2005 is reproduced herein:-

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Date: 2026.02.23 16:29:48+05'30' Foxit PDF Reader Version: 2024.3.0 6.3. Thus, from the perusal of the aforesaid notification, it is clear that the vacancies in Group-D arose only in the year 2004 and not in 2003 and the applicant was inducted in regular service in the Group-D civil post only in the year 2005. The respondents have UTKARSH DN: C=IN, O=Personal, T=5165, O I D . 2 . 5 . 4 . 6 5 =

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Date: 2026.02.23 16:29:48+05'30' Foxit PDF Reader Version: 2024.3.0 also consistently asserted that the vacancy against which the applicant was promoted arose only in the recruitment year 2004, and this assertion has not been rebutted by any cogent material on record.

6.4. It is also evident that the applicant's seniority position was corrected by issuance of a corrigendum dated 27.11.1997, and he was placed appropriately in the seniority list. His promotion was granted in accordance with seniority and availability of vacancy, and there is nothing on record to establish any illegality or arbitrariness in the promotion process.

6.5. The applicant has relied upon various judgments, including that of the Hon'ble Madras High Court in Union of India vs. K. Punniyakoti & Ors. reported in 2014 (2) CTC 777, to contend that pensionary benefits under the Old Pension Scheme should be extended where delay in appointment or promotion is attributable to the administration. Ld. Counsel has placed heavy reliance on K. Punniyakoti (supra) and has drawn our attention to the following paragraphs therein:-

"10. The only issue arises for consideration in this Writ Petition is as to whether new Pension Scheme, which came into force from 1.1.2004, is applicable to persons, who were already in employment either on daily wages or as temporary employees and whether, they are entitled to get pension under CCS (Pension) Rules, 1972 on being absorbed in permanent establishment after 1.1.2004 xxxxxxxxxxxx UTKARSH DN: C=IN, O=Personal, T=5165, OID.2.5.4.65= 133594473126687154pySd3T548hJkYS, Phone= d9b37d12604e22491616e4be43745443ceb9dc6b6c897b9b058b2c80169b 65de, P o s t a l C o d e = 8 1 2 0 0 1 , S = B i h a r , S E R I A L N U M B E R = 87702d895f8f8d9e54f67b1d9ffc368bb1bac7172b7b88641da0dc7e71dd7do a, CN=UTKARSH JHA JHA Reason: I am the author of this document Location:

Date: 2026.02.23 16:29:48+05'30' Foxit PDF Reader Version: 2024.3.0 Thus, it is clear that persons appointed as contingent staff either on temporary basis or on daily wage basis, who served not as a part-timer and received salary every month, are entitled to count 50% of their service for pension on their regularisation/absorption in regular establishment. The new Pension Scheme, which is called Contribution Pension Scheme, came into force from 1.1.2004 and the same is applicable to all new entrants of Central Government service as per the Scheme, and the Respondents 1 to 16 cannot be treated as new entrants in the Central Government service/IGCAR

17. The word "new entrant" has got a definite meaning, "a person, who enters recently". A person already in service either as contingent staff or temporary staff continuously and absorbed in permanent establishment on or after 1.1.2004, cannot be termed as "new entrant" into service. The new Pension Scheme can be applied only to persons appointed for the first time as casual or temporary or permanent employee on or after 1.1.2004.

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23. The right of Government servants to receive Pension is not a bounty, and it is a statutory right conferred under the Pension Rules applicable from the date when the Government servant was appointed, either on daily wage/temporary/permanent basis. Permanent absorption having been ordered considering the temporary service rendered earlier, under any stretch of imagination the persons who, were already in employment prior to 1.1.2004 cannot be treated as 'fresh appointees' for the purpose of applying new Pension Scheme, which came into force from 1.1.2004.

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25. Considering the overall aspects in the matter as well as the undisputed fact that the Respondents 1 to 16 have been appointed as Casual Labourers UTKARSH DN: C=IN, O=Personal, T=5165, OID.2.5.4.65= 133594473126687154pySd3T548hJkYS, Phone= d9b37d12604e22491616e4be43745443ceb9dc6b6c897b9b058b2c80169b65de, Postal Code = 812001, S = Bihar, SERIAL NUMBER = 87702d895f8f8d9e54f67b1d9ffc368bb1bac7172b7b88641da0dc7e71dd7do a, CN=UTKARSH JHA JHA Reason: I am the author of this document Location:

Date: 2026.02.23 16:29:48+05'30' Foxit PDF Reader Version: 2024.3.0 and subsequently conferred temporary status from 31.12.1999, merely because they have been absorbed permanently in the year 2005 in Group 'D' service, they cannot be denied of their statutory right. The Tribunal has approached the issue in a proper perspective and we confirm the said findings of the Tribunal."

However, the legal position on this issue has been conclusively settled by the Hon'ble Supreme Court in Union of India vs. Gadiba Behara, reported in (2021) 14 SCC 786. On the strength of this judgment, Ld. Counsel for the respondents has also controverted the applicability of K. Punniyakoti (supra) in the instant case. In Gadiba Behara (supra), the Hon'ble Apex Court has also discussed the issue of eligibility of the GDS employees for pension. The relevant paragraphs of the said judgment are reproduced hereunder:-

"20. D.S. Nakara has been relied upon on behalf of the respondents in support of their contention that there cannot be any artificial discrimination between two groups of pensioners. But the factual context of the case of D.S. Nakara is different. The discrimination which was challenged in that case related to two sets of retired

Armed Forces personnel who were categorised on the basis of their dates of retirement and one set had better terms of pension.

The decisions in P.K. Rajamma and Chet Rams are for the proposition that the respondents held civil posts as GDS and were government servants. But again ratio of these authorities cannot be applied to combine the services rendered by GDSs in posts guided by an altogether different service rule with UTKARSH DN: C=IN, O=Personal, T=5165, OID.2.5.4.65= 133594473126687154pySd3T548hJkYS, Phone=d9b37d12604e22491616e4be43745443ceb9dc6b6c897b9b058b2c80169b 65de, Postal Code = 812001, S = Bihar, SERIAL NUMBER = 87702d895f8f8d9e54f67b1d9ffc368bb1bac7172b7b88641da0dc7e71dd7do a, CN=UTKARSH JHA JHA Reason: I am the author of this document Location:

Date: 2026.02.23 16:29:48+05'30' Foxit PDF Reader Version: 2024.3.0 their services in regular employment. The other authority on which reliance has been placed on behalf of the respondents is a judgment of this Court delivered on 23-8-2017 in Habib Khan v. State of Uttarakhand¹². That case arose out of a similar dispute involving a work-charged employee of the State of Uttarakhand who wanted his service in that capacity counted for computing the qualifying service in regular post on the question of grant of pension. This judgment was also delivered by a two-Judge Bench of which Hon'ble Justice Ranjan Gogoi, before his Lordship assumed the post of Chief Justice of India, was a member. The aforesaid decision followed an earlier judgment of this Court delivered in Punjab SEB v. Narata Singh. The latter case arose out of similar claims of work-charged employees who were engaged in the Irrigation and Power Department of the State of Punjab. The relevant provision of the Punjab Civil Services Rules allowed temporary or officiating service under a the State Government without interruption followed by confirmation in the same or another post to be counted in full as qualifying service but excluded the period of service in work-charged establishment. The aforesaid Rule was struck down by the Full Bench of the Punjab and Haryana High Court. The decision of this Court in Narata Singh was however founded on two circulars which permitted counting the period of service rendered by a work-charged employee in the Central Government or the State Government for the purpose of computing pensionary benefits as an employee of the Punjab State Electricity Board. The respondents in these appeals also cannot be held to be work-charged employees. The said category of employees i.e. work-charged employees are engaged against specific work and their pay and allowances are chargeable to such work. But the scope of respondents' work as GDS was part-time in nature. They had the liberty to engage themselves in other vocations, though the work they involved in carried an element of UTKARSH DN: C=IN, O=Personal, T=5165, OID.2.5.4.65= 133594473126687154pySd3T548hJkYS, Phone=d9b37d12604e22491616e4be43745443ceb9dc6b6c897b9b058b2c80169b 65de, Postal Code = 812001, S = Bihar, SERIAL NUMBER = 87702d895f8f8d9e54f67b1d9ffc368bb1bac7172b7b88641da0dc7e71dd7do a, CN=UTKARSH JHA JHA Reason: I am the author of this document Location:

Date: 2026.02.23 16:29:48+05'30' Foxit PDF Reader Version: 2024.3.0 permanency. The fact that they were engaged as GDSs which constituted civil posts cannot by implication treat their service having whole-time characteristic to be an extension of their service rendered in the capacity of GDSs. The subsequent service was guided by different service rules having different employment characteristics. The d selection of an employee in regular post cannot also be pre-dated because of delay on the part of the authorities in holding the selection process. We do not agree with the view of the High Court on this count in judgments which form subject of appeal in Civil Appeal No. 5008 of 2016, SLP (C) No. 16767 of 2016, Civil Appeal No. 8379 of 2016 and Civil Appeal No. 10801 of 2016. Service tenure of an employee in a particular post cannot be artificially extended in that e manner in the absence of any specific legal provision,

21. In Union of India v. Registrar, a plea similar to that made by the GDSs for computation of service in that capacity was specifically rejected. There is no specific rule or even administrative circular specifying computation of service period rendered as GDS to fill up the gap in the qualifying service requirement of the respondents in this set of appeals. The only circular on which f the respondents laid stress on was the 1991 circular which was considered in Union of India v. Registrar. As the post of GDS did not constitute full-time employment, the benefits of the said circular cannot aid the respondents. Thus, there being a clear cut finding on similarly placed employees, we do not think we can apply the ratio of the judgment delivered in Habib Khan in support of the respondents' plea. An unreported judgment of the Karnataka High Court 9 delivered on 17-6-2011 in Union of India v.

Dattappa has also been cited on behalf of the respondents. This judgment went in favour of counting the period of service as extra-departmental agent for qualifying service in relation to pension and the Division Bench of the UTKARSH DN: C=IN, O=Personal, T=5165, OID.2.5.4.65=1 3 3 5 9 4 4 7 3 1 2 6 6 8 7 1 5 4 p y S d 3 T 5 4 8 h J k Y S , P h o n e = d9b37d12604e22491616e4be43745443ceb9dc6b6c897b9b058b2c80169b 65de, P o s t a l C o d e = 8 1 2 0 0 1 , S = B i h a r , S E R I A L N U M B E R = 87702d895f8f8d9e54f67b1d9ffc368bb1bac7172b7b88641da0dc7e71dd7do a, CN=UTKARSH JHA JHA Reason: I am the author of this document Location:

Date: 2026.02.23 16:29:48+05'30' Foxit PDF Reader Version: 2024.3.0 Karnataka High Court proceeded on the basis that for all intents and purpose, the employment was continuous in nature and it was not as if it was from one service to another. But, this view has not been accepted by this Court in Union of India v. Registrar.

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26. Having regard to the provisions of the aforesaid Rules relating to qualifying service requirement, in our opinion the services rendered by the respondents as GDS or other Extra-Departmental Agents cannot be factored in for computing their qualifying services in regular posts under the Postal Department on the question of

grant of pension. But we also find many of the respondents are missing pension on account of marginal shortfall in their regular service tenure. This should deserve sympathetic consideration for grant of pension. But we cannot trace our power or jurisdiction to any legal principle which could permit us to fill up the shortfall by importing into their service tenure, the period of work they rendered as GDS or its variants. At the same time, we also find that in Union of India v. Registrar, though the incumbent therein (being Respondent 2) had completed nine years and two months of service, the Union of India had passed orders granting him regular pension. This Court in the order passed on 24-11-2015¹⁰ had protected his pension though the appeal of the Union of India was allowed.

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27. For the reasons we have already discussed, we are of the opinion that the judgments under appeal cannot be sustained. There is no provision under the law on the basis of which any period of the service rendered by the respondents in the capacity of GDS could be added to their regular tenure in the Postal Department for the purpose of fulfilling the period of qualifying service on the question of grant of pension. UTKARSH DN: C=IN, O=Personal, T=5165, OID.2.5.4.65=133594473126687154pySd3T548hJkYS, Phone=d9b37d12604e22491616e4be43745443ceb9dc6b6c897b9b058b2c80169b65de, Postal Code=812001, S=Bihar, SERIALNUMBER=87702d895f8f8d9e54f67b1d9ffc368bb1bac7172b7b88641da0dc7e71dd7do a, CN=UTKARSH JHA JHA Reason: I am the author of this document Location:

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29.1. In the event the Central Government or the Postal Department has already issued any order for pension to any of the respondents, then such pension should not be disturbed. In issuing this direction, we are following the course which was directed to be adopted by this Court in Union of India v.

Registrar."

6.6. In the above quoted judgment, the Hon'ble Supreme Court has clearly held that applicability of the pension scheme is determined by the date of entry into service and not by the date of occurrence of vacancy. It was further held that merely because a vacancy arose prior to the introduction of the New Pension Scheme, an employee appointed thereafter cannot claim the benefit of the Old Pension Scheme.

6.7. Being a judgment of the Hon'ble Supreme Court, the said decision is binding upon this Tribunal under Article 141 of the Constitution of India. Therefore, the reliance placed by the applicant on judgments of various High Courts cannot advance his case, as the law laid down by the Hon'ble Supreme Court prevails. 6.8. Applying the aforesaid legal position to the present case, it is clear that the applicant entered departmental civil service on 30.04.2005, which is after the introduction of the New Pension Scheme with effect from 01.01.2004. Therefore, he is governed by the New Pension

Scheme, and no entitlement under the Old Pension Scheme can arise.

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Date: 2026.02.23 16:29:48+05'30' Foxit PDF Reader Version: 2024.3.0 6.9. It is also pertinent to note that the applicant voluntarily applied for and accepted benefits under the New Pension Scheme, including withdrawal of pension corpus, and therefore he is estopped from challenging the applicability of the said scheme at this belated stage.

6.10. Further, the challenge raised by the applicant pertains to seniority list of 1997 and promotion granted in 2005, whereas the present O.A. has been filed after a lapse of more than a decade.

Such claims are clearly barred by limitation and the doctrine of delay and laches, and entertaining such stale claims would disturb settled service matters.

6.11. In view of the above, we find no illegality or infirmity in the action of the respondents.

CONCLUSION

7. In light of the foregoing analysis, and particularly in view of the binding law laid down by the Hon'ble Supreme Court in Union of India vs. Gadiba Behara (supra), the applicant is not entitled to promotion from the year 2003, nor is he entitled to pensionary benefits under the Old Pension Scheme. Accordingly, the O.A. is devoid of merit and is dismissed.

8. There will be no order as to cost.

(Diwakar Singh)
Member (J)
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